

Showing contexts for: **article 21 judgments** in [Justice K.S.Puttaswamy\(Retd\) And Anr. vs Union Of India And Ors. on 24 August, 2017](#)

Context size:

(c) the verification of movements and absences by means of inquiry slips;

(f) the collection and record on a history-sheet of all information bearing on conduct.”¹² This Court held that the freedom to move freely throughout the territory of India, guaranteed by [Article 19\(1\)\(d\)](#) was not infringed by a midnight knock on the door of the petitioner since “his locomotion is not impeded or prejudiced in any manner”.¹³ When the decision in Kharak Singh was handed down, the principles governing the inter-relationship between the rights protected by [Article 19](#) and the right to life and personal liberty under [Article 21](#) were governed by the **judgment** in Gopalan. Gopalan considered each of the **articles** in the Chapter on fundamental rights as embodying distinct (as opposed to over-lapping) freedoms. Hence in Kharak Singh, the Court observed :

“In view of the very limited nature of the question before us it is unnecessary to pause to consider either the precise relationship between the “liberties” in [Article 19\(1\)\(a\) & \(d\)](#) on the one hand and that in [Article 21](#) on the other, or the

content and significance of the words “procedure established by law” in the latter **Article**, both of which were the subject of elaborate consideration by this Court in [A.K. Gopalan v. State of Madras.](#)”¹²

26 The decision in *M P Sharma* held that in the absence of a provision like the Fourth Amendment to the US Constitution, a right to privacy cannot be read into the Indian Constitution. The decision in *M P Sharma* did not decide whether a constitutional right to privacy is protected by other provisions contained in the fundamental rights including among them, the right to life and personal liberty under **Article 21**. Hence the decision cannot be construed to specifically exclude the protection of privacy under the framework of protected guarantees including those in **Articles 19** or **21**. The absence of an express constitutional guarantee of privacy still begs the question whether privacy is an element of liberty and, as an integral part of human dignity, is comprehended within the protection of life as well. 27 The decision in *Kharak Singh* is noteworthy because while invalidating Regulation 236(b) of the Police Regulations which provided for nightly domiciliary visits, the majority construed this to be an unauthorized intrusion into a person’s home and a violation of ordered liberty. While arriving at this conclusion, the majority placed reliance on the privacy doctrine enunciated by Justice Frankfurter, speaking for the US Supreme Court in *Wolf v Colorado* (the extract from *Wolf* cited in the majority **judgment** specifically adverts to ‘privacy’ twice). Having relied on this doctrine **▲ PART F** to invalidate domiciliary visits, the majority in *Kharak Singh* proceeded to repel the challenge to other clauses of Regulation 236 on the ground that the right of privacy is not guaranteed under the Constitution and hence **Article 21** had no application. This part of the

judgment in Kharak Singh is inconsistent with the earlier part of the decision. The decision of the majority in Kharak Singh suffers from an internal inconsistency.

“But all this does not mean that the police have a licence to enter the names of whoever they like (dislike?) in the surveillance register; nor can the surveillance be such as to squeeze the fundamental freedoms guaranteed to all citizens or to obstruct the free exercise and enjoyment of those freedoms; nor can the surveillance so intrude as to offend the dignity of the individual. Surveillance of persons who do not fall within the categories mentioned in Rule 23.4 or for reasons unconnected with the prevention of crime, or excessive surveillance falling beyond the limits prescribed by the rules, will entitle a citizen to the court's protection which the court will not hesitate to give. The very Rules Ibid, at pages 424-425 (para 6)  PART H which prescribe the conditions for making entries in the surveillance register and the mode of surveillance appear to recognise the caution and care with which the police officers are required to proceed. The note following Rule 23.4 is instructive. It enjoins a duty upon the police officer to construe the rule strictly and confine the entries in the surveillance register to the class of persons mentioned in the rule. Similarly Rule 23.7 demands that there should be no illegal interference in the guise of surveillance. Surveillance, therefore, has to be unobtrusive and within bounds.”⁷³ The observations in Malak Singh on the issue of privacy indicate that an encroachment on privacy infringes personal liberty under [Article 21](#) and the right to the freedom of movement under [Article 19\(1\)\(d\)](#). Without specifically holding that privacy is a protected constitutional value under [Article 19](#) or [Article 21](#), the **judgment** of this Court indicates that serious encroachments on privacy impinge upon personal liberty and the freedom of movement. The Court linked such an encroachment with the dignity of the individual which would be offended by surveillance bereft of procedural protections and carried out in a manner that would obstruct the free exercise of freedoms guaranteed by the fundamental rights.

(3) There is yet another exception to the rule in (1) above — indeed, this is not an exception but an independent rule. In the case of public officials, it is obvious, right to privacy, or for that matter, the remedy of action for damages is simply not available with respect to their acts and conduct relevant to the discharge of their official duties. This is so even where the publication is based upon facts and statements which are not true, unless the official establishes that the publication was made (by the defendant) with reckless disregard for truth. In such a case, it would be enough for the defendant (member of the press or media) to prove that he acted after a reasonable verification of the facts; it is not necessary for him to prove that what he has written is true. Of course, where the publication is proved to be false and actuated by malice or personal animosity, the defendant would have no defence and would be liable for damages. It is equally obvious that in matters not relevant to the discharge of his duties, the public official enjoys the same protection as any other citizen, as explained in (1) and (2) above. It needs no reiteration that judiciary, which is protected by the power to punish for contempt of court and Parliament and legislatures protected as their privileges are by [Articles 105](#) and [104](#)  PART H respectively of the Constitution of India, represent exceptions to this rule...”⁸¹ 55 The **judgment** of Justice Jeevan Reddy regards privacy as implicit in the right to life and personal liberty under [Article 21](#). In coming to the conclusion, the **judgment** in Rajagopal notes that while Kharak Singh had referred to the right of privacy, the decision turned on the content of life and personal liberty in [Article 21](#). The decision recognises privacy as a protected constitutional right, while tracing it to [Article 21](#).

Provided that press messages intended to be published in India of correspondents accredited to the Central Government or a State Government shall not be intercepted or detained, unless their transmission has been prohibited under this sub-section.” ⁶⁰ The submission on the invalidity of the statutory provision authorising telephone tapping was based on the right to privacy being a fundamental right under [Articles 19\(1\)](#) and [21](#) of the Constitution. Justice Kuldeep Singh adverted to the observations contained in the majority **judgment** in Kharak Singh which led to the invalidation of the provision for domiciliary visits at night under Regulation 236(b). PUCL cited the minority view of Justice Subba Rao as having gone even further by invalidating Regulation 236, in its entirety. The **judgment**, therefore, construes both the majority and minority **judgments** as having affirmed the right to privacy as a part of [Article 21](#):

“**Article 21** of the Constitution has, therefore, been interpreted by all the seven learned Judges in Kharak Singh case [(1964) 1 SCR 332 : AIR 1963 SC 1295] (majority and the minority opinions) to include that “right to privacy” as a part of the right to “protection of life and personal liberty” guaranteed under the said **Article**.”⁸⁸ Gobind was construed to have upheld the validity of State Police Regulations providing surveillance on the ground that the ‘procedure established by law’ under **Article 21** had not been violated. After completing its summation of precedents, Justice Kuldip Singh held as follows: